

[10 EDW. 7 & *Little Hulton Urban District Council* [Ch. cxvi.]
1 GEO. 5.] Act, 1910.



CHAPTER cxvi.

An Act to empower the urban district council of Little A.D. 1910.

Hulton to supply gas and to provide for the transfer to the Council of so much of the gas undertaking of the Salford Corporation as is situate within the urban district of Little Hulton and to confirm an agreement with the Earl of Ellesmere for the supply of gas in bulk to the Council and to make further and better provision with regard to the improvement health and local government of the district and for other purposes.

[3rd August 1910.]

WHEREAS the district of Little Hulton in the county palatine of Lancaster (in this Act called "the district") is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Little Hulton Urban District Council (in this Act called "the Council"):

And whereas the mayor aldermen and burgesses of the county borough of Salford (in this Act called "the corporation") are supplying gas within the district and it is desirable that such supply should be in the hands of the Council and that the Council should be authorised to supply gas within such portion of the district as is not within the limits of supply of the Farnworth and Kearsley Gas Company:

And whereas the corporation and the Council have entered into an agreement for the sale and transfer to the Council of the portion of the gas undertaking of the corporation which is within the district of the Council and such agreement is set

[Price 3s. 6d.]

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A.D. 1910. — forth in the First Schedule to this Act and it is expedient that the said agreement be confirmed and carried into effect:

And whereas the Council subject to the sanction of Parliament have entered into an agreement with the Right Honourable Francis Charles Granville Egerton Third Earl of Ellesmere (in this Act called "the Third Earl") for the supply by him to the Council of gas in bulk for distribution by the Council within the district and it is expedient that such agreement should be confirmed:

And whereas an estimate has been prepared by the Council for the purpose herein-after mentioned and such estimate is as follows:—

For the gas main to be laid by the Council under
paragraph 10 of the agreement set forth in the
Third Schedule to this Act - - - - - £300

And whereas the work included in such estimate is a permanent work and it is expedient that the cost thereof should be spread over a term of years:

And whereas an absolute majority of the whole number of the Council at a meeting held on the thirteenth day of December one thousand nine hundred and nine after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Bolton Evening News a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate:

And whereas such resolution was published twice in the Farnworth Journal a local newspaper circulating in the district and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the sixth day of January one thousand nine hundred and ten being not less than fourteen days after the deposit of the Bill for this Act in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

And whereas the purposes of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted A.D. 1910.
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Little Hulton Urban* Short title.
District Council Act 1910.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Transfer of the Gasworks Undertaking of
the Salford Corporation within the
District.

Part III.—Supply of Gas.

Part IV.—Streets Buildings Sewers and Drains.

Part V.—Infectious Disease and Sanitary Provisions.

Part VI.—Finance.

Part VII.—Miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely) :—

Incorpora-
tion of Acts.

The Lands Clauses Acts (except section 127 of the Lands
Clauses Consolidation Act 1845) ;

The Gasworks Clauses Act 1847 (except the provisions
thereof with respect to the amount of profit to be received
by the undertakers when the gasworks are carried on for
their benefit and with respect to the yearly receipt and
expenditure of the undertakers) and also as if the words
following were added at the end of section 13 of the
said Act (that is to say) :—

“ Provided that every such contract entered into by
the Council shall be alike in terms and amount under
like circumstances to all consumers ” ; and

The Gasworks Clauses Act 1871 (except sections 7 8 and 35
thereof).

A.D. 1910.

Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And for the purposes of this Act the following expressions shall also have the following respective meanings (that is to say):—

“The Council” means the urban district council of the urban district of Little Hulton;

“The district” means the urban district of Little Hulton;

“The corporation” means the mayor aldermen and burgesses of the county borough of Salford;

“The Third Earl” means the Right Honourable Francis Charles Granville Egerton Earl of Ellesmere and the person or persons for the time being entitled to the receipt of the rents and profits of the freehold estates for the time being comprised in the Ellesmere settlement in the agreement in the Third Schedule to this Act referred to or any re-settlement of the said estates which may hereafter be made;

“The district fund” and “the general district rate” respectively mean the district fund and the general district rate of the district;

“The limits of supply” means the limits within which the Council are authorised by this Act to supply gas;

“The gasworks undertaking” means the gasworks undertaking of the Council authorised by this Act;

The expression “the gas undertaking of the corporation” means the portion of the gas undertaking and plant of the corporation within the district and all the rights powers and privileges if any vested in or belonging to or had or enjoyed by the corporation within the district in relation to the manufacture sale and supply of gas and shall include all mains pipes meters stoves cookers or other apparatus laid or erected or used by and belonging to the corporation within the district at or after the passing of this Act but prior to the date of transfer;

“The date of transfer” means the date at which the gasworks undertaking of the corporation is by this Act transferred to the Council;

"The clerk" "the surveyor" "the medical officer" and "the inspector of nuisances" respectively mean the clerk the surveyor the medical officer of health and inspector of nuisances appointed by the Council in pursuance of the powers of any public Act and "medical officer" includes any person duly authorised to act temporarily as medical officer of health;

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"Dairyman" includes any cowkeeper purveyor of milk or occupier of a dairy;

"Infectious disease" means any infectious disease to which the Infectious Disease (Notification) Act 1889 applies for the time being within the district;

"Daily penalty" means a penalty for each day on which any offence is continued after conviction thereof;

"Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council:

And the several words and expressions to which by the Public Health Acts meanings are assigned shall in this Act (except where otherwise expressly provided) have the same respective meanings unless there is something in the subject or context repugnant to such construction.

PART II.

TRANSFER OF THE GASWORKS UNDERTAKING OF THE SALFORD CORPORATION WITHIN THE DISTRICT.

5.—(1) The agreement made the fourteenth day of March one thousand nine hundred and ten between the corporation of the one part and the Council of the other part set forth in the First Schedule to this Act is hereby confirmed and made binding on the parties thereto.

Corporation to sell portion of their gas undertaking in district to Council.

(2) The sale of the undertaking shall be carried into effect and evidenced by deed in accordance with the provisions of the

A.D. 1910. — said agreement and on the execution of the deed by the corporation the gas undertaking of the corporation with its rights powers and privileges shall by virtue of the deed and of this Act become and shall thenceforth be transferred to and vested in the Council and such transfer and vesting is in this Act referred to as "the transfer."

(3) The before-mentioned purchase money when received by the corporation shall be applied by them to gasworks purposes to which capital is properly applicable or in the repayment of any outstanding moneys borrowed by the corporation for gasworks purposes or in such other manner as may be approved by the Local Government Board.

Copy of this Act and receipt for purchase money to be evidence of transfer.

6. The production of a King's Printers copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by the treasurer of the county borough of Salford or by the cashier of the Bank of England shall (unless it be proved that such purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Council of the gasworks undertaking of the corporation.

Receipt for purchase money.

7. The receipt in writing of the treasurer of the county borough of Salford for the purchase money or any part thereof or for any other sum of money to be paid to the corporation by the Council shall effectually discharge the Council from the sum which in any such receipt shall be acknowledged to have been received and from being answerable or accountable for the loss misapplication or non-application thereof. Provided that if from any cause the Council are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened "In the matter of the Little Hulton Urban District Council Act 1910" and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of the treasurer of the county borough of Salford.

Council may exercise powers &c. of corporation.

8. From and after the transfer the Council may exercise and enjoy all the rights powers privileges and authorities which were vested in the corporation before such transfer as the same related to the gas undertaking of the corporation or were exerciseable by the corporation within the district and subject as in this section provided all rights powers and obligations of the

corporation to supply gas within the district shall cease and determine All mains laid by the corporation within the district are hereby confirmed and shall be deemed to have been laid under the powers of this Act. A.D. 1910.

9. No action suit prosecution or other proceeding whatsoever commenced and no cause of action suit or arbitration prosecution or proceedings pending or existing either by or against the corporation shall abate or be discontinued or prejudicially affected by reason of the transfer to and vesting in the Council of the gas undertaking of the corporation but the same shall continue and take effect either in favour of or against the corporation in the same manner in all respects as the same would have continued and taken effect in relation to the corporation if the transfer had not been made and all penalties incurred by reason of any offence against the provisions of any regulations of the corporation binding on the corporation previously to the transfer may be sued for and all offences committed against such provisions previously to the transfer may be prosecuted in such or the like manner to all intents and purposes as such penalties might have been sued for or such offence prosecuted if the transfer had not taken place and all rents rates and moneys payable to the corporation prior to the date of transfer may be sued for and recovered by the corporation in the same manner in all respects as the same might have been sued for and recovered if this Act had not been passed. Actions &c. not to abate and penalties to be recoverable.

10. Until the date of transfer the gas undertaking of the corporation shall be and continue to be maintained and carried on by the corporation as heretofore in the ordinary course of business but the corporation shall not without the previous consent of the Council under the hand of their clerk enter into any new liability contract or agreement or other obligation in respect of the gas undertaking of the corporation except such as may be in the ordinary course of the proper conduct of business. Corporation to carry on gas undertaking until completion of purchase.

PART III.

SUPPLY OF GAS.

11. The limits of this Act for the supply of gas shall be and include that portion of the district which is not included within the limits of supply of the Farnworth and Kearsley Gas Limits for supply of gas.

A.D. 1910. Company described in the schedule to the Farnworth and Kearsley Gas Act 1868.

Power to
Council to
erect and
maintain
gasworks &c.

12.—(1) Subject to the provisions of this Act the Council may in or upon the lands described in the Second Schedule to this Act or any part or parts thereof erect construct maintain and repair and as often as occasion may require enlarge alter improve extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stopcocks machinery and other works and apparatus and conveniences and may do all such acts as they respectively may think proper for making and storing gas and for the conversion or utilisation and distribution of materials used in and about the manufacture of gas and of residual products resulting from such manufacture and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may store and supply gas supplied under the agreement set forth in the Third Schedule to this Act.

(2) The Council may manufacture sell provide and deal in coke coal-tar asphaltum ammoniacal liquor oil and all other refuse or residuary products arising remaining produced by or obtained from the manufacture of gas by them or the materials used therein and may manufacture produce and sell such articles as can be produced from and by means of the several matters and things aforesaid.

Scheduled
agreement
with Third
Earl con-
firmed.

13. The agreement dated the sixth day of December one thousand nine hundred and nine made between the Third Earl of the one part and the Council of the other part as set forth in the Third Schedule to this Act is hereby confirmed and made binding on the Third Earl and the Council respectively.

Power to
purchase
lands by
agreement.

14. The Council may for the purposes of their gasworks undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the Second Schedule to this Act lands not exceeding in the whole two acres which the Council may from time to time require for the purposes of their gasworks undertaking but the Council shall not create or permit a nuisance on any such lands and no lands shall be used by the Council for the purpose of manufacturing gas or residual products except the lands described in the Second Schedule to this Act.

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15.—(1) The Council may sell let for hire fix repair and remove but shall not manufacture engines motors stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

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Power to supply gas fittings &c. for heating and other purposes and fittings not to be subject to distress.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked and impressed with a sufficient mark or brand indicating the Council as the actual owners thereof.

(3) Provided as follows:—

(A) The Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connexion therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(B) Every sum charged by the Council in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Council to the consumer:

(C) The total sums expended and received by the Council in connexion with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the undertaking of the Council for that year.

16.—(1) All gas engines apparatus fittings and appliances let by the Council on hire under the provisions of this Act shall notwithstanding that they be fixed or fastened to any part of any such premises in which they may be situate or to the soil under any such premises at all times continue to be

Engines &c. of Council let on hire though fixed to premises to remain

A.D. 1910. the property of and removable by the Council Provided that
property of such gas engines apparatus fittings and appliances have upon
Council. them respectively a distinguishing metal plate affixed to a con-
spicuous part thereof or a distinguishing brand or other mark
conspicuously impressed or made thereon sufficiently indicating
the Council as the actual owners thereof.

(2) Nothing in this section shall affect the amount of assess-
ment for rating of any premises upon which any gas engines
apparatus fittings and appliances are or shall be fixed.

Charges for gas supplied by means of prepayment meters. 17.—(1) The Council may demand for any gas supplied
through a prepayment meter a not greater charge than for gas
supplied to private consumers within their limits of supply
through any other kind of meter or by any other method of
supply.

(2) The Council shall not charge for the hire of any pre-
payment meter and fittings to be used therewith any sum other
than a sum of money calculated according to the quantity of gas
supplied through such prepayment meter and the maximum sum
to be so charged shall be at the rate of tenpence per one thousand
cubic feet supplied in manner aforesaid such sum to include the
hire of meter and the fittings used therewith or at the rate of
one shilling per one thousand cubic feet if such fittings include
a cooking stove :

The said charge shall include the providing letting fixing
repairing and maintenance of the meters and fittings and the
cost of collection and other costs incurred by the Council in
connexion with the meters and fittings.

(3) The maximum charge for the hire of a prepayment
meter without fittings shall be at the rate of sixpence per one
thousand cubic feet of gas.

(4) For the purpose of this section the expression "pre-
payment meter" means any meter or appliance by which the
quantity of gas supplied is regulated according to the amount
of money prepaid therefor.

Power to lay pipes in streets not dedicated to public use. 18. The Council may upon the application of the owner or
occupier of any premises within the limits of supply abutting on
or being erected in any street or road laid out or made but not
dedicated to public use supply such premises with gas and may
lay and from time to time take up alter relay or renew in across
or along such street or road such pipes as may be requisite or

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proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid so far as they are respectively applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. A.D. 1910.

19. The price to be charged by the Council for gas supplied by them to persons who shall burn the same by meter shall not at any time exceed the sum of three shillings and sixpence per thousand cubic feet of gas. Limits of price.

20. All gas supplied by the Council to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and to balance from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit from time to time test the pressure at which the gas is supplied The Council shall afford to the examiner all reasonable facilities for making the test. Pressure.

21. The prescribed number of candles shall not be less than fourteen. Quality of gas.

22. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Council on the lands described in the Second Schedule to this Act before supplying or within three months after beginning to supply gas under the authority of this Act. Testing place.

23.—(1) The quality of the gas supplied by the Council shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Testing for quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand

A.D. 1910. No. 2 the photometer shall be the bar or table photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light. Provided that the Board of Trade may on the application of the Council or any five consumers approve the use of any other burner photometer or standard light which may appear to the Board of Trade to be equally or more suitable for the testing.

(3) The Council shall before supplying or within three months after beginning to supply gas under this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

Saving as to penalties.

24. No penalty shall be incurred by the Council for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by circumstances beyond the control of the Council.

Council may contract with local authority &c. for supply in bulk.

25. The Council may contract with any local authority company or persons supplying gas under parliamentary powers in any district adjacent to the Council's limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Council to lay any mains or interfere with any street beyond their limits of supply.

As to construction and placing of pipes &c. between mains and meters.

26. In order to enable the Council to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

(1) The Council may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Council's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:

(2) The Council may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

(3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Council: A.D. 1910.

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Council's main but within the outside wall of the building:

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Council and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Council. Any officer of the Council duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Council's specification or if the meter is not placed as required by this section the Council may refuse to supply gas to the premises until the provisions of this section have been complied with:

(6) Any person to whom the Council refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Council's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

27. If a person requiring a supply of gas from the Council has previously quitted premises at which gas was supplied to him by the Council without paying to them all gas charges and meter rent due from him to the Council they may refuse to furnish to him a supply of gas until he pays the same. Power to refuse supply to persons in debt for other premises.

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Gas consumers to give notice to Council before removing.

28. At least twenty-four hours' notice in writing shall be given to the Council by every gas consumer before he shall quit any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be contained in every demand note for gas charges payable to the Council.

Notice to discontinue supply of gas.

29. A notice to the Council from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at the office of or sent by post to the clerk to the Council.

Period of error in defective meters.

30. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter and the amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Council.

Council to pay interest on money deposited as security.

31. If any person is required by the Council to give to them security for any supply of gas or the payment of the price or rent of a meter and such security is made by way of deposit the Council shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Power to lay down and utilise pipes for ancillary purposes.

32. The Council may lay down place repair alter remove and renew mains and pipes within the limits of supply for the purpose of procuring conducting or disposing of any tar or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for

the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains and pipes. A.D. 1910.

33. Every consumer of gas supplied by the Council who uses a gas engine shall if required to do so by the Council use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Council may cease to supply gas to such consumer The Council shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Council if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer. Anti-fluctua-
tors for gas
engines.

34. The following provisions for the protection of the London and North Western Railway Company (herein-after referred to as "the North Western Company") and of the Lancashire and Yorkshire Railway Company (herein-after referred to as "the Lancashire and Yorkshire Company") shall be in force and have effect:— For protec-
tion of Lon-
don and
North West-
ern Railway
Company
and Lanca-
shire and
Yorkshire
Railway
Company.

In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the North Western Company or the Lancashire and Yorkshire Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of either of the said companies the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the respective companies and only according to plans to be submitted to and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Council who also shall restore and make good the roads over any such bridges level crossings and approaches which the North Western Company or the Lancashire and Yorkshire Company as the case may be are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Council and all such works matters and things shall be constructed

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executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic over such railways or at any station thereon And if any such injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any bridge or level crossing the Council shall make compensation in respect thereof to the North Western Company or the Lancashire and Yorkshire Company as the case may be the amount of such compensation unless agreed to be determined by arbitration in the manner herein-after provided.

Any dispute or difference which may arise between the Council and the North Western Company or the Lancashire and Yorkshire Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other suitable person to be appointed by the Board of Trade on the application of either of the parties in difference.

PART IV.

STREETS BUILDINGS SEWERS AND DRAINS.

Council may
define future
line of
streets.

35.—(1) Where any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by the clerk and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

(2) The Council may and if required so to do by the owner shall purchase the land for the time being unbuilt upon lying between any such lines as aforesaid and the street or road and the same when purchased shall vest in the Council as part of the street or road and the amount of purchase money shall in case of difference be settled by arbitration under the Arbitration Act 1889. A.D. 1910.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

36. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street. Continuation of existing streets to be deemed new streets.

37.—(1) No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof. No building allowed until street defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

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Further provisions as to new streets.

6

38. When a road or lane within the district becomes in consequence of building operations a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street has been or is in course of being built on the Council may instead of requiring the owner of the land built on or in course of being built on to widen such road or lane to a width prescribed by the byelaws in force in the district require such owner to widen such road or lane so as to give a width not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land. Provided that if and when the land on the opposite side of such road or lane shall be built on the Council shall require the owner of such land to complete the widening of such road or lane so as to give the complete width prescribed by the byelaws of the Council.

For preventing soil and sand from being washed into streets.

39.—(1) The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon or adjoining any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) For the purpose of this section "public street" means a street repairable by the inhabitants at large and "private street" means a street not so repairable.

For preventing water flowing on footpath.

40. Where premises abutting upon any street are so situate that the surface water from such premises flows on to the footpath of such street the owner of such premises shall within one month after service of an order of the Council for that purpose execute such works as may be necessary to prevent the water from such premises from flowing over the footpath and in default of compliance with such order within the period aforesaid such owner shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding forty shillings.

Prevention and removal

41. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall with

respect to the district extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Council may determine to be dangerous or an obstruction to the safe or convenient use of any street.

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of projec-
tions over
streets.

42. Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Council be well and sufficiently fenced off from the footpath or street and any person who shall offend against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Forecourts
to be fenced
off from
streets.

43.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage.

Trees or
shrubs over-
hanging
streets and
footpaths.

(2) Any person aggrieved by any requirement of the Council under this section may appeal to a court of summary jurisdiction within three clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Council under this section.

44. The owner or owners of any existing court yard or passage used in common by two or more occupiers (not being a highway repairable by the inhabitants at large) or of any part of such court yard or passage shall flag asphalt concrete or pave such court yard or passage or any part thereof and make a drain through or along the same or such part thereof as the Council require and keep such flagging asphalt concrete or paving

Courts to be
flagged.

A.D. 1910. and drain in good repair and if such owner or owners for one month after notice in writing from the Council fail in any respect to comply with this provision he or they shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and the Council may themselves if they think fit do the work and recover the expense incurred by them in that behalf from such owner or owners summarily.

Means of
escape from
buildings in
case of fire.

45.—(1) Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(3) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Regulation
dustbins.

46. The Council may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide galvanized iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such bins shall be of such size and construction as may be approved by the Council and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings Provided that this section shall not apply to any ashpits or any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable size and in proper order and condition.

Provisions as
to house
without
water
supply.

47. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not

exceeding twenty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available. A.D. 1910.

48.—(1) The Council may by resolution declare that any sewer for the time being belonging to them shall thenceforth be appropriated and used for sewage (in this section called a “sewage sewer”) and they may also declare that any other sewer for the time being belonging to them shall thenceforth be appropriated and used for surface water (in this section called a “surface-water sewer”).

Provision as to separate system of sewerage.

(2) Where under the provisions of any Acts for the time being in force in the district the Council have power to require any street to be sewered they may require the provision of separate sewage sewers and surface-water sewers and the provisions of those Acts shall apply to such sewers accordingly Provided that the provisions of this subsection shall not be exercised unless and until the Council shall have provided sewers adequate and proper for the purpose of receiving the sewage from such separate sewage sewers and shall have provided sewers or other outlets adequate and proper for the purpose of receiving the surface water from such separate surface-water sewers.

(3)—(A) Where in any street separate sewage sewers and surface-water sewers shall have been provided (whether before or after the passing of this Act) no sewage shall be allowed to pass from any premises into the surface-water sewers and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers except with the consent in writing of the Council:

(B) Any persons who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings:

(C) Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such premises the provisions of this subsection shall not apply to such premises until the Council have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and surface-water drainage thereof and the Council may if they think fit make all such alterations.

A.D. 1910.
Council may
require en-
larged sewer.

49. If in any street not repairable by the inhabitants at large the Council shall for the purpose of main drainage or otherwise require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

Amendment
of section 19
of Public
Health Acts
Amendment
Act 1890.

50. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Council may
order houses
to be drained
by a com-
bined drain.

51.—(1) If it appears to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of a sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Council except with the consent of the owner or owners of the said house.

Council may
make com-
munications
between
drains and
sewers.

52. If the owner or occupier of any premises within the district desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council such communication shall be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their

satisfaction and the Council may execute all works necessary A.D. 1910.
for that purpose.

53.—(1) Every pipe from any slopstone bath or basin in a building shall where practicable be carried through the external wall of such building and be constructed so as to discharge in the open air on the outside of such building over a channel leading to a gulley grating at a suitable distance and every gulley grating or other inlet to the drains shall be properly trapped.

Pipes from slopstones to be disconnected from sewers.

(2) Any person neglecting or refusing for a period of twenty-eight days to comply with a notice from the Council requiring him to carry out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(3) Provided that this section shall only apply to buildings existing at the passing of this Act and that any expense incurred in respect of any such building beyond a sum of two pounds shall be borne by the Council.

54.—(1) The soil pipe of any watercloset within a house or building shall be properly ventilated by means of a pipe carried up therefrom or by such other method as the Council shall direct.

Soil pipes to be ventilated.

(2) Any owner or occupier of such house or building who shall neglect or fail to comply with any requirement of the Council under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

55. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under this Part of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute

Penalty on occupiers refusing execution of Act.

A.D. 1910. the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Saving for
railway com-
panies.

56. Nothing in this Part of this Act or in any byelaw made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connexion with their railway under any Act of Parliament.

PART V.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Compensa-
tion to dairy-
men.

57. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the district the Council may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the district fund or general district rate.

Compensa-
tion to per-
sons ceasing
employment.

58. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Council may make compensation to him for any loss he may sustain by reason of such stoppage.

Council may
supply anti-
dotes against
infectious
disease.

59. The Council may provide and supply (with or without charge therefor) to any medical practitioner antidotes and remedies against infectious disease.

Information
to be fur-
nished to
medical
officer and
penalty for
furnishing
false infor-
mation.

60.—(1) The occupier of any building in the district which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

[10 EDW. 7 & *Little Hulton Urban District Council* [Ch. cxvi.]
1 GEO. 5.] Act, 1910.

(2) Any occupier knowingly furnishing false information shall be liable on summary conviction to a penalty not exceeding forty shillings. A.D. 1910.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

61.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who within the district—

For regulat-
ing manu-
facture and
sale of ice-
cream &c.

(A) Causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping-room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

A.D. 1910.

Inspection of
premises of
dealers in
ice-cream.

62.—(1) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry and inspection into and of the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned.

(2) Any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

Improper
construction
or repair of
watercloset
or drain.

63. If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a fine not exceeding twenty pounds. Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any fine and the said other person may be summarily convicted of the offence.

Wilful dam-
age to drains
and sanitary
apparatus.

64.—(1) No person shall cause any drain watercloset earth closet privy ashpit or dustbin to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

(3) Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved

[10 EDW. 7 & *Little Hulton Urban District Council* [Ch. cxvi.]
1 GEO. 5.] *Act, 1910.*

by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act. A.D. 1910.

65.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Council without giving to the Council or the medical officer twelve hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so. Notice of intention to repair drains.

(2) Free access to such drain or work of repair shall be afforded to the inspector of nuisances or any officer of the Council authorised in writing by the medical officer for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

66.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the Council offices and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained. Public notice to be given of provisions of this Part of Act.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

67. Any expenses of the execution by the Council of this Part of this Act shall be defrayed out of the district fund and general district rate. Expenses of this Part of Act.

PART VI.

FINANCE.

68.—(1) The Council may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):— Power to borrow.

(A) For the purchase of the gas undertaking of the corporation in accordance with the agreement set forth in the First Schedule to this Act and for defraying the

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costs and expenses incident to such purchase and to the transfer thereof to the Council (other than the costs of this Act) such sums as may be necessary;

(B) For the gas main to be laid by the Council under paragraph 10 of the agreement set forth in the Third Schedule to this Act the sum of three hundred pounds;

(C) For working capital the sum of one thousand four hundred pounds;

(D) For the extension and improvement of the gasworks undertaking of the Council such sums as the Local Government Board may sanction;

(E) For paying the costs and expenses of this Act the sum requisite for that purpose;

and with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of this Act or otherwise in relation to their gasworks undertaking.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the revenue of the gasworks undertaking and if they think fit as a collateral security the district fund and general district rate of the district.

Section 234
of Public
Health Act
not to apply.

69. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Method of
raising
money.

70. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

[10 EDW. 7 & *Little Hulton Urban District Council* [Ch. cxvi.]
1 GEO. 5.] *Act, 1910.*

71. The following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):—

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Provisions
of Public
Health Act
as to mort-
gages to
apply.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages);

Section 239 (Receiver may be appointed in certain cases).

72. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say):—

Periods for
repayment
of money
borrowed.

As to moneys borrowed for the purposes (A) and (B) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within thirty years from the date or dates of the borrowing of the same;

As to moneys borrowed for the purpose (C) in the said section mentioned within ten years from the date or dates of the borrowing of the same;

As to moneys borrowed for the purpose (E) in the said section mentioned within five years from the date of the passing of this Act;

As to moneys borrowed with the approval of the Local Government Board within such period not exceeding sixty years as that Board may think fit to sanction.

73. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Method of
payment off
of money
borrowed.

74.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

Sinking
fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together

A.D. 1910.

amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a "non-accumulating sinking fund"; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to

the fund are based any such excess may be applied towards such equal annual payments. A.D. 1910.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed periods the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that when it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Local Government Board shall approve.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the equal annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of

A.D. 1910. which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

Protection of
lender from
inquiry.

75. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Council not
to regard
trusts.

76. The Council shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or any interest thereon not entered in their register.

Power to
re-borrow.

77.—(1) The Council shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid— A.D. 1910.

- (A) By instalments or annual payments; or
- (B) By means of a sinking fund; or
- (C) Out of moneys derived from the sale of land; or
- (D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

78.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Return to
Local Gov-
ernment
Board as to
repayment
of debt.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any

A.D. 1910. — sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Application
of money
borrowed.

79. Moneys borrowed or raised by the Council under this Act shall be applied only to the several purposes in respect of which they were respectively authorised to be borrowed or raised and to which capital is properly applicable.

Proceeds of
sale of sur-
plus lands.

80. The proceeds of the sale of any lands or other property of the Council under the powers of this Act and the fines and premiums on any leases granted by the Council under this Act shall be distinguished as capital in the accounts of the Council and shall be applied in discharge of any moneys borrowed by the Council under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council but shall not be applied to the payments of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board and borrowed money discharged by the application of such sums shall not be re-borrowed.

Council to keep
separate ac-
counts of gas
undertaking.

81. The Council shall keep separate accounts of their receipts and expenditure for gasworks purposes on capital and revenue account.

Application
of revenue of
gasworks
undertaking.

82. The Council shall apply all moneys received by them in respect of their gasworks undertaking except money borrowed and money received from the sale of lands or other moneys received on capital account as follows (that is to say):—

(First) In payment of the working and establishment expenses and cost of maintenance of the gasworks undertaking ;

(Secondly) In payment of the interest on moneys borrowed by the Council for the purposes of the gasworks undertaking ;

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(Thirdly) In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Council for the purposes of the gasworks undertaking; A.D. 1910.

(Fourthly) In extending improving and constructing (if the Council think fit) any works for the purposes of the gasworks undertaking;

(Fifthly) In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to one-fifth of the aggregate capital expenditure for the time being upon the gasworks undertaking of the Council which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the gasworks undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the gasworks undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed limit and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the full amount of one-fifth of the said aggregate capital expenditure:

And the Council shall carry to the district fund so much of any balance remaining in any year of the income of the gasworks undertaking (including the interest on the reserve fund when such fund amounts to one-fifth of the said aggregate capital expenditure) as may in the opinion of the Council not be required for carrying on improving or extending the gasworks undertaking and paying the current expenses connected therewith.

83. Any deficiency in the revenues or receipts of the Council on account of their gasworks undertaking shall be made good out of the district fund and the next general district rate to be made by the Council shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund. As to deficiency in receipts.

A.D. 1910.

PART VII.

MISCELLANEOUS.

Dwelling-
houses for
persons in
employ of
Council.

84. The Council may purchase or take on lease and may erect fit up maintain and let upon the lands for the time being belonging to or leased by them for the purposes of their gas-works undertaking dwelling-houses for persons employed by them for the purposes of that undertaking.

Power to
hold licences
under letters
patent.

85. The Council may take hold and use patent rights and licences or authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture of gas or of the residual products herein-before mentioned.

Audit of
accounts.

86. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

Power to
sell &c.
lands.

87. The Council may sell lease and dispose of any lands acquired by or vested in them under this Act (including the lands described in the Second Schedule to this Act) and not for the time being required for the purposes thereof.

Power to
grant gratui-
ties in cer-
tain cases.

88.—(1) The Council may if they think fit in cases not within the Workmen's Compensation Act 1906 grant a gratuity of any sum (not exceeding one year's pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer or servant who may die in their service.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

In executing
works for
owner Coun-
cil not liable
for damages-
save in case
of negli-
gence.

89. Whenever the Council under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Council or any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses

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payable by such owner or occupier and shall be recoverable A.D. 1910.
accordingly.

90. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by an officer of the Council authorised in that behalf or by the clerk.

Informations
by whom to
be laid.

91. Where in any legal proceedings taken by or on behalf of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be primâ facie evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Evidence of
appoint-
ments autho-
rity &c.

92. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts.

As to
appeal.

93.—(1) Where any notice or demand under this Act within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

Authenti-
cation and
service of
notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

A.D. 1910.
Recovery of
penalties &c.

94. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
demands.

95. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Power to
Local Gov-
ernment
Board to
direct in-
quiries.

96.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary for giving effect to any of the provisions of this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Difference
with road
authorities or
railway or
other com-
panies.

97. If any difference arise between the Council and any road authority or railway canal or other company whose lands or works the Council have power to cross under the authority of this Act as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Damages
and charges
to be settled
by justices.

98. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount

of such damages expenses costs or charges in case of dispute A.D. 1910.
respecting the same may be settled and determined by a court
of summary jurisdiction before whom any offender is convicted.

99. All penalties recovered by the Council or other officer of the Council on their behalf whether under this Act or any byelaw thereunder shall be paid to the treasurer of the Council and subject to the provisions of the Police Act 1890 shall be carried by him to the credit of the district fund or to such other fund as the Council direct. Penalties to be paid over to treasurer.

100. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts. Compensation &c. how to be determined.

101. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments &c.

102. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges &c. not disqualified.

103. All the powers rights and remedies given to the Council by this Act (except where otherwise expressly provided) shall be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

104. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

A.D. 1910.

Expenses of
Act.

105. The costs charges and expenses preliminary to and of and incidental to obtaining this Act or otherwise in relation thereto shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council in the first instance out of the district fund and general district rate and ultimately may be paid out of moneys borrowed by the Council for that purpose under the authority of this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1910.

FIRST SCHEDULE.

THIS AGREEMENT made the fourteenth day of March one thousand nine hundred and ten between the MAYOR ALDERMEN and BURGESSES of the county borough of SALFORD (herein-after called "the Corporation") of the one part and the URBAN DISTRICT COUNCIL OF LITTLE HULTON in the county of Lancaster (herein-after called "the District Council") of the other part.

Stamp.

Ten
shillings.

WHEREAS some part of the district of the District Council (herein-after called "the district") is supplied with gas by the Corporation:

And whereas the District Council are desirous of purchasing from the Corporation and the Corporation have agreed to sell to the District Council all the mains pipes meters gas cookers and other apparatus belonging to the Corporation and used by them in or for the purpose of the supply of gas within the district and all the rights and powers of the Corporation to supply gas within such district upon the terms and conditions herein-after contained:

Now it is hereby mutually agreed and declared between the Corporation and the District Council as follows (that is to say):—

1. Subject to the District Council obtaining the parliamentary authority herein-after mentioned the Corporation shall sell and the District Council shall purchase all the rights powers and privileges of the Corporation with respect to the supply of gas in the district together with the mains pipes meters and cookers and other apparatus belonging to the Corporation laid or fixed in the district and used on the actual date of completion in connexion with such supply all which premises are herein-after referred to as "the district rights and apparatus" but subject to all obligations and restrictions (if any) to which the Corporation may be liable from and after the said date of completion in respect of the district rights and apparatus save so far as it is herein-after provided the same shall fall upon and be discharged

A.D. 1910. by the Corporation The consideration to be paid by the District Council to the Corporation on completion of the said purchase shall be the sum of seven thousand five hundred pounds together with such sum of money (if any) as may be properly expended by the Corporation between the twenty-ninth day of September one thousand nine hundred and nine and the said date of completion in providing and laying additional mains and service pipes in the district and in providing and supplying additional meters and cookers (both on hire purchase and loan) and other additional apparatus in the district Provided always that the District Council shall not be charged with any amount expended by the Corporation between the aforesaid dates in the repair and renewal of existing mains and service pipes and the renewal of existing meters and cookers in the district Provided further that the said sum or sums shall be deemed to include goodwill and compensation for loss of profits made by the Corporation in the district and for compensation for works and mains of the Corporation rendered idle by the severance of the district from the gas supply area of the Corporation and all other claims (if any) by the Corporation in respect of the purchase by the District Council of the district rights and apparatus.

2. The said purchase shall be completed on or before the thirty-first day of March one thousand nine hundred and eleven at the town clerk's office Town Hall Salford whereupon the said consideration money shall be paid and the Corporation shall execute under their common seal a deed transferring the said district rights and apparatus to the District Council as from the thirty-first day of March one thousand nine hundred and eleven or from the said actual date of completion after which actual date of completion the Corporation shall cease to supply gas in the district but without prejudice to the rights powers and privileges of the Corporation in respect of the supply of gas within the district antecedent to the thirty-first day of March one thousand nine hundred and eleven or the actual date of completion Provided always that if the said consideration money shall not be paid on or before the said thirty-first day of March one thousand nine hundred and eleven the District Council shall pay to the Corporation interest thereon at the rate of four pounds per centum per annum from such day to the actual date of completion and the Corporation may if they think fit give three months' notice in writing under the hand of their town clerk to terminate this agreement and if the said consideration money shall not have been paid within such three months the agreement shall then be determined accordingly.

3. Upon payment of the said consideration money and completion of the said purchase the District Council shall take over the said district rights and apparatus as from the thirty-first day of March one

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thousand nine hundred and eleven or the said actual date of completion and be subject to all the obligations and restrictions (if any) to which the Corporation may be liable in respect of such district rights and apparatus save so far as it is herein-after provided the same shall fall upon and be borne by the Corporation and shall indemnify the Corporation against all actions claims demands or expenses (if any) which may be brought against or sustained by the Corporation in consequence of the cesser of the supply of gas within the district by the Corporation after payment and completion as aforesaid. A.D. 1910.

4. The Corporation shall not be called upon to furnish to the District Council any title in respect of the said district rights and apparatus.

5. The Corporation shall bear and pay all outgoings and liabilities of every kind including interest and sinking fund on their mortgage debts (if any) in respect of the part of the said gas undertaking comprised in the district rights and apparatus and also all liability in respect of causes of action then existing and shall receive all gas rents and other debts due to them and shall be entitled to all receipts from the undertaking up to and including the thirty-first day of March one thousand nine hundred and eleven or the said actual date of completion. Provided always that nothing in this agreement contained shall entitle the Corporation to retain for their own benefit so much of any rents paid or payable in advance as shall be attributable to any period after the thirty-first day of March one thousand nine hundred and eleven or the said actual date of completion but such rents and other payments shall be apportioned and so much thereof as is attributable to any period after the thirty-first day of March one thousand nine hundred and eleven or the said actual date of completion shall be paid over to the District Council.

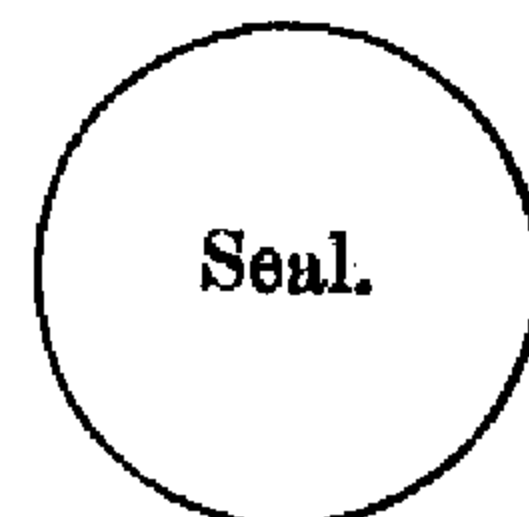
6. The District Council will take all such steps as may be necessary and will use their best endeavours to obtain parliamentary sanction to enable them to carry out the terms of this agreement and to release the Corporation from all obligations to supply gas within the district after the thirty-first day of March one thousand nine hundred and eleven or the said actual date of completion. In the event of the District Council not obtaining the parliamentary sanction herein-before mentioned before the thirty-first day of December one thousand nine hundred and ten this agreement shall be null and void.

In witness whereof the Corporation and the District Council have caused their respective common seals to be hereunto affixed the day and year first above written.

A.D. 1910.

(ORIGINAL EXECUTED THUS)

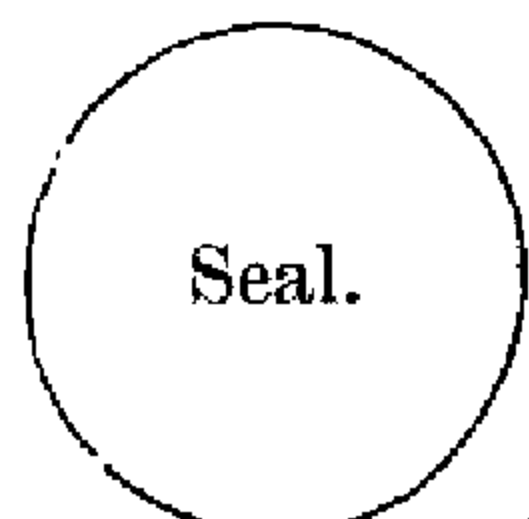
The common seal of the mayor aldermen and burgesses of the county borough of Salford was hereunto affixed in pursuance of a resolution of the Council dated the fifth day of January one thousand nine hundred and ten in that behalf in the presence of



L. C. EVANS
Town Clerk.

(COUNTERPART EXECUTED THUS)

The common seal of the urban district council of Little Hulton was hereunto affixed in the presence of



WILLIAM HODGKISS
Chairman.

JAMES H. HEYES
Clerk.

SECOND SCHEDULE.

Certain lands belonging to or reputed to belong to the Third Earl situate in the township and urban district of Little Hulton in the county of Lancaster in the occupation of Frederick Topp containing 5858 superficial square yards or thereabouts and bounded on the north south east and west sides thereof respectively by lands belonging or reputed to belong to the Third Earl and forming parts of the fields or parcels of land respectively numbered 469 and 470 on the ¹/₂₅₀₀ Ordnance map (Lancashire sheets XCV. 5 and XCV. 9).

THIRD SCHEDULE.

A.D. 1910.

AN AGREEMENT made this sixth day of December one thousand nine hundred and nine between the Right Honourable FRANCIS CHARLES GRANVILLE EGERTON third EARL OF ELLESMERE (herein-after called the Third Earl which expression whenever consistent with the context shall include the person or persons for the time being entitled to the receipt of the rents and profits of the freehold estates for the time being comprised in the Ellesmere settlement herein-after referred to or any re-settlement of those estates which may hereafter be made) of the one part and the URBAN DISTRICT COUNCIL OF LITTLE HULTON in the county of Lancaster (herein-after called the Council which expression whenever consistent with the context shall include their successors and assigns) of the other part.

Stamp.

Ten
shillings.

WHEREAS under or by virtue of an indenture of settlement (herein called the Ellesmere settlement) dated the twenty-fourth day of October one thousand nine hundred and three and made between the Third Earl of the first part the Right Honourable John Francis Granville Scrope Egerton commonly and herein-after called Viscount Brackley of the second part the Right Honourable Mary Louisa Dowager Countess of Ellesmere of the third part the Right Honourable Katharine Louisa Countess of Ellesmere of the fourth part Walter Longley Bourke the Right Honourable Frederick Archibald Vaughan Earl Cawdor the Most Honourable and Reverend Constantine Charles Henry Marquis of Normanby and the Honourable Thomas Henry Frederick Egerton of the fifth part and the third Earl Viscount Brackley the said Thomas Henry Frederick Egerton and Claude Francis Arthur Egerton of the sixth part the lands described in the schedule hereto together with other hereditaments now stand limited to uses under which the Third Earl is the legal tenant for life in possession thereof without impeachment of waste and as such tenant for life he is empowered by the Ellesmere settlement to carry on any trade or business carried on at the date of such settlement upon or in any of the premises thereby settled and any other trade or business which he may think desirable or proper from time to time to carry on in connexion with the premises thereby settled and to employ capital money for business purposes and in any case where it appears to him to be for the benefit

A.D. 1910. of the trust estate to enter into any working agreement with any other person or persons and to enter into contracts in relation to any matter or purpose for which capital money is authorised to be advanced or applied and to create and grant easements rights and privileges over or in relation to any of the hereditaments thereby settled:

And whereas at the date of the Ellesmere settlement the trade or process of coke making was carried on upon the land first described in the said schedule and such business or process is now carried on thereon by the Third Earl:

And whereas in the process of coke making gas is produced which can be utilised for lighting heating and other purposes:

And whereas the Council propose to promote a Bill in the ensuing session of Parliament for the purpose of enabling them amongst other things to supply their district with gas for lighting heating and other purposes:

And whereas the Third Earl and the Council have agreed to enter into these presents for the purposes and in manner herein-after appearing:

Now these presents witness and it is hereby mutually agreed and declared between and by the Third Earl and the Council as follows:—

1. The Council shall promote and use its best endeavours to secure the passing in the next session of Parliament of a Bill with such clauses (if any) as may be necessary to enable this agreement to be carried into effect and will not insert or consent to but on the contrary will resist the insertion in the said Bill of any clause or provision repugnant to or inconsistent with these presents or any clause matter or thing herein contained except the same shall be imposed by Parliament.

2. The Third Earl shall on or before the thirty-first day of March 1911 by means of the coke ovens plant and machinery now or hereafter erected upon the land first described in the said schedule and by means of coke ovens plant machinery and apparatus to be provided by him upon such land and the land secondly described in the said schedule as herein-after mentioned commence and for ever thereafter (subject to determination as herein-after provided) continue to supply to the Council in the manner and upon the terms and conditions herein-after contained coke oven gas for lighting heating and other purposes in respect of the whole or the portion or portions of the Council's district herein-after referred to.

The aforesaid supply of gas shall in the first instance be limited and extend only to the portion of the Council's district now or heretofore supplied with gas by the Salford Corporation but if at any time

or times hereafter during the continuance of this agreement the Council shall be in a position to supply any other portion or portions of their district with gas then and in each such case the Council shall take from the Third Earl and the Third Earl shall supply upon the terms and conditions herein contained gas for such other portion or portions of the said district. A.D. 1910.

The Council shall accept take and pay for as herein-after mentioned the gas hereby agreed to be supplied by the Third Earl and shall not during the continuance of this agreement obtain or procure from any person body or authority other than the Third Earl a supply of gas for or in respect of the whole or the portion or portions of their said district which is for the time being supplied with gas in pursuance of this agreement.

3. The Third Earl will at his own expense subject to the reasonable approval of the engineer for the time being of the Council from time to time erect and provide upon the lands described in the said schedule and thereafter maintain in efficient repair and condition such buildings condensers exhausters scrubbers or washers purifiers gas-holders station meters station governors boosters and other similar appliances but exclusive of coke ovens as may be reasonably necessary or requisite for the purpose of affording the aforesaid supply of gas The Third Earl shall also at his own expense erect and provide upon the land secondly described in the said schedule two benches of retorts with the necessary coolers and washers which in the event of a strike of workmen employed by the Third Earl in connexion with the coke ovens plant and machinery erected upon the land firstly described in the said schedule or other unavoidable stoppage rendering it at any time or times during the continuance of this agreement impracticable for gas to be supplied in pursuance of these presents by means of the said coke ovens machinery and plant shall be operated and worked by and at the expense of the Council for the purpose of affording the necessary supply of gas and the Council and their servants and workmen shall for the purposes of such operating and working be entitled to reasonable means of access to and from the land secondly described in the said schedule.

4. The station meter to be provided by the Third Earl for the purpose of registering the quantity of gas supplied shall be of a make approved by the engineer for the time being of the Council and shall be fixed in a suitable building to be erected upon the land secondly described in the said schedule to which the Council and all persons for the time being authorised by them shall have access at all times.

If at any time the station meter shall cease to register correctly or shall at any time be removed for the purpose of repair renewal

A.D. 1910. or for any other reason then until such meter shall be repaired or replaced so as to register correctly the quantity of gas passing through it the Third Earl shall be entitled to charge and the Council shall be liable to pay for a daily quantity of gas for which the Council shall have paid or been liable to pay in respect of the corresponding quarter of the preceding year or any less period during which such meter may have been in use in such corresponding quarter or period.

In the event of the station meter being found to register erroneously or of any defect being found in the quality of gas supplied such erroneous registration or such defect in quality shall be deemed to have arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the Council by the Third Earl shall be paid by or to the Third Earl to or by the Council (as the case may be) within one month after such amount shall have been determined.

5. The Council may from time to time appoint a gas examiner who shall have reasonable facilities given to him by the Third Earl for the purpose of testing the quality pressure and purity of the gas.

6. The gas supplied to the Council shall be of an illuminating power of not less than fourteen candles tested by the Metropolitan Argand Burner No. 2 and be free from sulphuretted hydrogen and of a calorific or heating value of five hundred and fifty British thermal units gross and supplied at such initial pressure up to ten inches as may be required by the Council.

7. In respect of the gas supplied after purification (exclusive of any enrichment) by the Third Earl and registered by the station meter the price payable therefor by the Council to the Third Earl shall subject as herein-after mentioned be ninepence per one thousand cubic feet for any quantity up to four hundred thousand cubic feet per day of twenty-four hours but if in any year ending on the twenty-fifth day of December the quantity of gas supplied as registered by the station meter shall upon an average exceed four hundred thousand cubic feet per day of twenty-four hours then and in every such year in which such excess shall occur the price of the gas shall be reduced from ninepence per one thousand cubic feet to sevenpence per one thousand cubic feet. For the purpose of fixing and arriving at the price per one thousand cubic feet for the time being payable by the Council the consumption of gas supplied from the lands described in the said schedule to places outside the district of the Council either by the Third Earl or the Council shall be included and taken into account. If the Third Earl shall at any time during the continuance of this agreement supply from the lands described in the said schedule

gas to any persons companies or bodies at a less price per one thousand cubic feet than that for the time being payable by the Council in pursuance of this agreement then and in any such case similar prices to those afforded to such other persons companies or bodies as aforesaid shall during the continuance of such supply apply and be applicable to the supply of gas to the Council in pursuance of this agreement. A.D. 1910.

8. The Council hereby guarantee that if in any year ending on the twenty-fifth day of December the quantity of gas taken by them from the Third Earl in pursuance of this agreement shall not amount to eight million cubic feet then and in each such case the Council will immediately after such twenty-fifth day of December pay to the Third Earl at the price herein provided for the deficiency between the quantity taken and the quantity guaranteed.

9. If the gas after purification requires to be enriched to reach the fourteen candle power standard before referred to or if the Council require the gas to be of a still higher or greater candle power then and in every such case the Third Earl will cause the gas to be enriched or made of the candle power required at the price of one halfpenny per candle power per one thousand cubic feet which shall be payable by the Council to the Third Earl on the usual quarter days in addition to the price herein referred to.

10. The Third Earl will during the continuance of this agreement subject as herein-after mentioned afford free of charge to the Council an easement enabling them upon making reasonable compensation to the tenants to lay down construct repair and maintain below the surface of the land where practicable in the situation and direction shown by the dotted green line on the plan through lands subject to the limitations of the Ellesmere settlement a pipe of such dimensions as the Council may reasonably require for the purpose of conveying gas from the station meter to pipes belonging to the Council under the highway shown on such plan :

Provided always that the Third Earl may if and whenever he thinks fit at his own expense divert alter or change the situation position or direction of the aforesaid pipe but such diverted altered or changed pipe shall afford as reasonably good facilities for the enjoyment of the easement as the pipe for which it was substituted :

Provided also that the mines and minerals under any such easement as aforesaid are excepted and reserved to the Third Earl under and in accordance with the provisions contained in the Public Health Act 1875 (Support of Sewers) Amendment Act 1883.

11. Notwithstanding anything herein contained the Third Earl may supply gas but not through the Council's mains to persons companies

A.D. 1910. or authorities whose premises are situate outside the area of supply of the Council for the time being upon such terms and conditions and in such manner in all respects as he may from time to time think fit but so that all gas consumed in the urban district of Little Hulton and purchased from the Third Earl by the Council shall pass through the mains belonging to the Council.

12. The Council shall at their own expense make construct lay maintain keep in good repair and renew when necessary the pipe laid from the station meter as aforesaid and all such connexions mains pipes and other works and appliances as shall be necessary and proper for receiving and conveying the gas supplied to them by the Third Earl.

13. The Council shall use their best endeavours to procure the insertion and enactment in the said Bill of a clause to the effect that no penalty shall be incurred for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied in pursuance of this agreement in any case in respect of which it is proved that such insufficiency defect or excess was produced by unavoidable cause or accident.

14. The Council shall pay to the Third Earl upon the usual quarter days for the gas registered as aforesaid during the preceding quarter at the price herein specified.

15. This agreement may be determined either by the Third Earl or the Council at any time at or after the expiration of thirty-five years from the date hereof by either party giving to the other of them five years previous notice in writing.

16. If this agreement shall be determined in pursuance of the last preceding clause then and in such case the Council shall be entitled upon giving written notice of their intention in that behalf to the Third Earl at least six calendar months prior to such determination to purchase from the Third Earl at the option of the Council to be signified in such notice either in consideration of a sum of money in gross or of a perpetual yearly rentcharge the fee simple of the land secondly described in the said schedule together with the buildings machinery and plant for the time being thereon and with a convenient and suitable means of access thereto and a perpetual easement for maintaining and repairing a pipe for the purpose of conveying gas from the lands secondly described in the said schedule to the pipes belonging to the Council under the highway shown on the said plan. In the event of the Council exercising the aforesaid right of purchase the mines and minerals under the hereditaments purchased or acquired by them and under any easement for the time being enjoyed by them

shall be excepted and reserved to the Third Earl out of the convey-
ance to the Council under and in accordance with the provisions
contained in the Public Health Act 1875 (Support of Sewers) Amend-
ment Act 1883. A.D. 1910.

The amount of the consideration for the aforesaid purchase (which
as regards buildings machinery and plant shall be their structural value
only) whether consisting of a sum of money in gross or of a perpetual
yearly charge payable by the Council shall in default of agreement be
determined by arbitration under the provision in that behalf herein-
after contained.

If the Council shall elect to purchase the aforesaid hereditaments
in consideration of a sum of money in gross the purchase money shall
be paid by the Council upon the determination of this agreement and
if from any cause whatsoever (other than the Third Earl's wilful
default) the purchase shall not be completed at the time herein-before
appointed then and in such case the Council shall pay interest on the
amount of the said purchase money at the rate of four pounds per
centum per annum from the day appointed for completion until the
actual completion of the purchase.

If the Council shall elect to purchase the aforesaid hereditaments
in consideration of a perpetual yearly rentcharge such perpetual yearly
rentcharge shall be limited and made payable to the Third Earl out
of the hereditaments so purchased or acquired and shall be charged
thereon and also upon the rates for the time being payable to the
Council and shall be paid by half-yearly payments on the twenty-fourth
day of June and the twenty-fifth day of December in each year the first
of such half-yearly payments to be made on such of the said half-yearly
days as shall occur next after the determination of this agreement
and if for a broken half-year to be an apportioned payment.

If the Council shall exercise the aforesaid right of purchase the
Third Earl and all other necessary parties (if any) will execute an
assurance of the hereditaments purchased or acquired by the Council
and the Council shall execute the same and a duplicate thereof.

If the Council shall elect to make the aforesaid purchase in con-
sideration of a perpetual yearly rentcharge the assurance to the
Council together with a duplicate thereof shall be prepared by the
Third Earl's solicitors at the expense of the Council. Such assurance
shall be to the use that the Third Earl shall receive out of the here-
ditaments purchased or acquired by the Council the said perpetual
yearly rentcharge to be paid in the manner herein-before mentioned
and to be charged in manner aforesaid and to be secured by the
usual powers express or implied by statute of distress and entry and
receipt of rents and subject thereto to the use of the Council in fee

A.D. 1910. simple And such assurance shall contain a covenant on the part of the Council (framed so as to bind their assigns) for payment of the said perpetual yearly rentcharge at the times and in manner aforesaid.

The assurance to the Council whether in consideration of a sum of money in gross or of a perpetual yearly rentcharge shall contain such covenants stipulations and conditions as may be reasonably necessary for the purpose of giving effect to these presents and in particular shall contain provisions enabling the Third Earl at his own expense from time to time and at all times hereafter to divert alter or change the position situation or direction of any easement for the time being enjoyed by the Council but so that such diverted altered or changed easement shall afford as reasonably good facilities for the enjoyment of the easement as theretofore.

17. If the Council exercise the aforesaid right of purchase the title to the said hereditaments shall commence with the Ellesmere settlement which shall be accepted as a good root of title and the prior title shall not be inquired into or objected to on any ground or pretext whatsoever.

18. Within fourteen days after the delivery of the abstract the Council shall furnish to the solicitors of the Third Earl a statement in writing of their requisitions and objections arising on the abstract and every requisition or objection not so stated shall be considered as waived and for the purpose of any objection or requisition the abstract will be deemed perfect if it supplies the information suggesting the same although otherwise defective and if no requisition or objection is so stated the title shall be considered as accepted and in these respects time shall be deemed of the essence of the contract and if the Council shall make and insist on any objection or requisition either as to title conveyance or otherwise which the Third Earl shall be unable or unwilling to remove or comply with the Third Earl shall notwithstanding any previous negotiation or litigation be at liberty on giving to the Council not less than ten days' notice in writing to annul the sale in which case unless the objection or requisition shall have been in the meantime withdrawn the sale shall at the expiration of the notice be annulled.

19. The Third Earl and the Council may by deed duly executed at any time or times rescind alter or modify the whole or any part of this agreement.

20. Every notice hereby required or authorised to be given shall be in writing and if required or authorised to be given to the Third Earl may be left at or sent by registered post addressed to his chief

agent at the Bridgewater Offices Walkden or if required or authorised to be given to the Council may be given by the Third Earl or his chief agent and may be given to the clerk of the Council or left at any office of the Council. A.D. 1910.

21. Unless herein otherwise provided all questions or differences which may at any time arise between the parties hereto touching these presents or the subject matter thereof or arising out of or in relation thereto respectively whether as to construction or otherwise shall be referred to a single arbitrator in case the parties can agree upon one and in default of agreement to two arbitrators one to be appointed by each party to the difference and in either case in accordance with and subject to the provisions of the Arbitration Act 1889 or any subsisting amendment or re-enactment thereof.

22. This agreement is subject to the approval of Parliament and to such alterations as may be made by Parliament therein and shall be scheduled to the said Bill but in the event of either House of Parliament making any material alteration not approved of either by the Third Earl or the Council as the case may be then and in such case the party disapproving of the alteration may withdraw from this agreement.

23. If the said Bill be not passed by Parliament in the next session of Parliament this agreement and every clause hereof shall be void and of no effect.

In witness whereof the Third Earl hath hereunto set his hand and seal and the Council have caused their common seal to be hereunto affixed the day and year first before written.

The SCHEDULE before referred to.

FIRST.

All that plot of land situate in the parish and county borough of Bolton containing in the whole 26105 superficial square yards or thereabouts and more particularly delineated and described in the annexed map or plan and thereon edged red.

SECONDLY.

All that plot of land situate in the township of Little Hulton in the county of Lancaster containing in the whole 5858 superficial square yards or thereabouts and more particularly delineated and described in the annexed map or plan and thereon edged green.

[Ch. cxvi.] *Little Hulton Urban District Council* [10 EDW. 7 &
Act, 1910. 1 GEO. 5.]

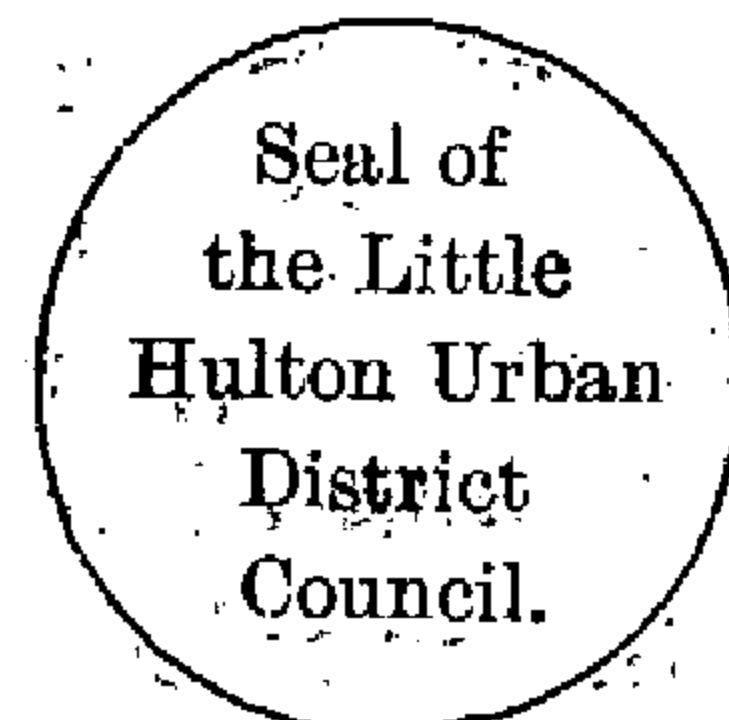
A.D. 1910. Signed sealed and delivered by the
above-named Third Earl in the
presence of

SALTOUN

3 Hereford Gardens
London W.

EGERTON ELLESMERE.

The seal of the Little Hulton Urban
District Council was hereunto
affixed pursuant to a resolution
of the said Council at a meeting
held on Monday the sixth day of
December 1909 by



JAMES H. HEYES

Clerk.

In the presence of

WILLIAM HODGKISS

Chairman.

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